

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephen Abrams-Downey	Team: Squad #01	CCRB Case #: 201409870	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 09/16/2014 10:53 PM	Location of Incident: 234 West 42nd Street and the 14th Precinct Stationhouse.	18 Mo. SOL 3/16/2016	Precinct: 14
Date/Time CV Reported Wed, 09/17/2014 12:42 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/25/2014 2:30 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Jennifer Powe	12590	955341	PBMS
2. POM Brian Andersen	04749	953638	PBMS
3. SGT Osvaldo Valentin	02673	914031	PBMS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Nicholas Colamussi	12920	954651	PBMS

Officer(s)	Allegation	Investigator Recommendation
A . SGT Osvaldo Valentin	Force: Sgt. Osvaldo Valentin used physical force against § 87(2)(b) inside 234 West 42nd Street, Manhattan.	A . Unfounded
B . POM Brian Andersen	Discourtesy: PO Brian Andersen spoke discourteously to § 87(2)(b) Cabrerra inside the 14th Precinct Stationhouse.	B . Unfounded
C . POF Jennifer Powe	Discourtesy: PO Jennifer Powe spoke discourteously to § 87(2)(b) inside the 14th Precinct Stationhouse.	C . Unsubstantiated

Case Summary

At approximately 10:53 p.m. on September 16, 2014, § 87(2)(b) and § 87(2)(b) were inside the Dave and Buster's at 234 West 42nd Street, in Manhattan. § 87(2)(b) had a dispute with the restaurant's employees about her bill and was asked to leave. After several minutes, Sgt. Osvaldo Valentin, PO Jennifer Powe, PO Brian Andersen, PO Nicholas Colamussi, and PO Daniel O'Neill arrived at the scene. These officers repeatedly asked § 87(2)(b) and § 87(2)(b) to leave the building. They complied with these commands after approximately five minutes. § 87(2)(b) and PO Powe argued with each other as they rode the escalator out of the building. When they arrived in the lobby, Sgt. Valentin, PO Andersen, and PO Colamussi pushed § 87(2)(b) against a wall and handcuffed him. § 87(2)(b) alleged that Sgt. Valentin pushed his head against the wall (**Allegation A**). Video footage was obtained showing this portion of the incident (encl. 8A). PO Powe also arrested § 87(2)(b) at this time. Sgt. Valentin, PO Andersen, and PO Powe then transported § 87(2)(b) and § 87(2)(b) to the Midtown South stationhouse. § 87(2)(b) alleged that PO Andersen told § 87(2)(b) to "shut the fuck up" at the stationhouse (**Allegation B**). § 87(2)(b) also alleged that PO Powe told her to "fucking look at [Sgt. Valentin] when he's fucking talking to you" (**Allegation C**). § 87(2)(b) and § 87(2)(b) were both issued Desk Appearance Tickets for § 87(2)(b) and were released from custody later that night (complaint encl. 5A-B, § 87(2)(b) CCRB testimony encl. 10F-G, § 87(2)(b) CCRB testimony encl. 11D-E).

Mediation, Civil, and Criminal Histories

A request for any notices of claim was submitted to the Office of the Comptroller on January 26, 2015 (encl. 15A). To date, no response has been received. This case was not eligible for mediation because § 87(2)(b) and § 87(2)(b) had pending criminal charges. § 87(2)(b) [§ 86(1)(2)(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2A).
- This is the second CCRB complaint filed by § 87(2)(b) § 87(2)(b)
- Sgt. Valentin has been a member of the NYPD for twenty-three years, has had twelve previous allegations involving eight cases. In case 200401917, physical force, retaliatory arrest, and discourtesy allegations were substantiated against Sgt. Valentin and charges were recommended (encl. 1A).
- PO Powe has been a member of the NYPD for one year and this is the first CCRB complaint filed against her (encl. 1C).
- PO Andersen has been a member of the NYPD for one year and this is the first CCRB complaint filed against him (encl. 1B).

Findings and Recommendations

Identification of Subject Officers

§ 87(2)(b) described the officer who allegedly pushed his face into a wall as a 5'5", 160 pound Hispanic male with a chubby build, brown hair, and a light skin tone. Sgt. Osvaldo Valentin of Patrol Borough Manhattan South was the only Hispanic male to respond to this incident. In his CCRB testimony, Sgt. Valentin stated that he handcuffed § 87(2)(b) § 87(2)(g)

§ 87(2)(b) described the officer who allegedly told § 87(2)(b) to “shut the fuck up” as a 5’8” white male in his thirties with a muscular build. This officer was at both the Dave and Buster’s and the Midtown South stationhouse. § 87(2)(g)

§ 87(2)(b) described the officer who allegedly told her to “fucking look at him when he’s fucking talking to you” as a 5’6” black female in her late twenties or early thirties with a thick build, short black hair, brown eyes. This officer was at both the Dave and Buster’s and the Midtown South stationhouse. § 87(2)(g)

Allegation A– Force: Officers used physical force against § 87(2)(b) inside 234 West 42nd Street, in Manhattan.

In his CCRB testimony, § 87(2)(b) alleged that Sgt. Valentin approached him when they arrived at the bottom of the escalator and pushed his face into a wall. PO Andersen and PO Colamussi then arrived and helped Sgt. Valentin handcuff § 87(2)(b). § 87(2)(b) testified Sgt. Valentin, PO Andersen, and PO Colamussi walked up to § 87(2)(b) at the same and pushed him into the wall. She stated that at least one of these officers also pushed § 87(2)(b)’s face into the wall.

Sgt. Valentin, PO Andersen, and PO Colamussi all testified that they handcuffed § 87(2)(b) by pushing his body against a wall and pulling his arms behind his back (Sgt. Valentin statement encl. 11E; PO Andersen statement encl. 10G; PO Colamussi encl. 12E). None of these officers saw Sgt. Valentin push § 87(2)(b)’s face into a wall. PO Powe stated that did not see Sgt. Valentin push § 87(2)(b)’s face into a wall during the incident (encl. 9G).

Video footage provided by § 87(2)(b) showed that the officers pushed § 87(2)(b)’s body while arresting him, but did not hit his face into the wall (encl. 8A).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unfounded**.

Allegation B– Discourtesy: PO Brian Andersen spoke discourteously to § 87(2)(b) inside the 14th Precinct Stationhouse.

In her CCRB testimony, § 87(2)(b) alleged that PO Andersen told § 87(2)(b) to “shut the fuck up” while their arrests were being processed at the Midtown South stationhouse. In his CCRB statement, § 87(2)(b) stated that he did not hear any officers use any profanity during the incident.

When interviewed at the CCRB, PO Andersen denied telling § 87(2)(b) to “shut the fuck up” while at the stationhouse. PO Powe stated that she did not hear PO Andersen make this comment or use any profanity. Sgt. Valentin, who was at the stationhouse at this time as well, stated that he did not hear PO Andersen make this alleged comment or use any profanity during the incident.

§ 87(2)(g)

§ 87(2)(g)

. Therefore, it is recommended that **Allegation B** be closed as **unfounded**.

Allegation C– Discourtesy: PO Jennifer Powe spoke discourteously to § 87(2)(b) inside the 14th Precinct Stationhouse.

§ 87(2)(b) stated that she attempted to ask Sgt. Valentin for information regarding her Desk Appearance Ticket. However, before he could respond, PO Powe allegedly told § 87(2)(b) to “fucking look at him when he’s fucking speaking to you.” § 87(2)(b) stated that § 87(2)(b) was inside a holding cell by this time and did not overhear the alleged profanity.

PO Powe denied making this statement or using any profanity during the incident. PO Andersen, and Sgt. Valentin, who were inside the stationhouse at the time of this allegation, denied hearing PO Powe speak discourteously.

§ 87(2)(g)

, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date